

26-104 RHONEY V. BARBOSA DA CUNHA

DECISION BELOW: 175 F.4th 61

LOWER COURT CASE NUMBER: 25-3141

QUESTION PRESENTED:

Whether 8 U.S.C. 1225(b)(2)(A) mandates the detention pending removal proceedings of aliens who, like respondent, are present in the United States without having been admitted.

CERT. GRANTED 10/1/2026